

Smt. Sudipa Das vs Sri Kausik Podder @ Tinku Podder on 18 June, 2026

TRHC010012082025

2026:THC:756

HIGH COURT OF TRIPURA
AGARTALA
Crl. Rev. P. No.56 of 2025

Smt. Sudipa Das,
W/O Sri Kausik Podder @ Tinku Podder,
D/O Late Sukumar Das,
Residing at Gurkhabasti, Natunpalli,
P.O. Kunjaban, P.S. New Capital Complex,
District- West Tripura, PIN-799006.

.... Petitioner-wife.

Versus

Sri Kausik Podder @ Tinku Podder,
S/O Late Tapan Podder,
Resident of Palace Compound,
North West Corner, Near Haradhan Sangha,
P.O.- Agartala, P.S.- West Agartala,
District- West Tripura, PIN-799001.

.....Respondent-husband.

For Petitioner(s) : Mr. Anjan Kanti Pal, Adv.

Mr. Tushar Kanti Bhattacharjee, Adv.

For Respondent(s)	:	None.
Date of Hearing	:	22.05.2026
Date of delivery of		
Judgment and Order	:	18.06.2026
Whether fit for		
Reporting	:	YES

HON'BLE MR. JUSTICE BISWAJIT PALIT

Judgment & Order

This revision petition under Section 19 (4) of the Family Court Act, 1984 read with Section 397 & Section 401 of Criminal Procedure Code (Cr.P.C.) is filed challenging the judgment and order dated 23.05.2025 passed by Learned Addl. Judge, Family Court, Agartala, West Tripura District in connection with Case No.Crl. Misc 388/2022. By the said judgment and order Learned Judge,

Family Court has dismissed the application for maintenance filed by the petitioner.

02. Heard Learned Counsel, Mr. Anjan Kanti Pal appearing on behalf of the petitioner but none appeared on behalf of respondent-husband. Although the respondent- husband was represented by his engaged Learned Counsel, an adjournment was sought and granted, but inspite of granting adjournment at the time of hearing none appeared on behalf of the respondent-husband.

03. Taking part in the hearing, Learned Counsel for the petitioner drawn the attention of the Court that the marriage of the petitioner was solemnized on 26.01.2011 at Rajnandan Marriage Hall near Grandues Club, Agartala under the East Agartala P.S. in presence of their parents, relatives, friends and well wishers of both the parties as per Hindu Marriage rites and customs. After the marriage both of them started living together as husband and wife at the house of respondent at Palace Compound, North West Corner, Agartala and due to their wed lock one female child was begotten to them on 19.10.2013 who is presently studying at Holy Cross School, Agartala.

04. According to the petitioner, after the birth of the child, the OP-husband along with his mother started physical and mental torture upon the petitioner for bringing money amounting to Rs.2,00,000/- from her parental home. But the petitioner could not fulfill the demand resulting which she was subjected to physical and mental torture and continued to stay at her matrimonial home. Lastly on 25th June, 2021 the OP- husband and his mother physically assaulted upon the petitioner and driven her out from her matrimonial home and after that the OP-husband filed one divorce case against the petitioner-wife which was registered as T.S. (Div) No.330 of 2021 before the Ld. Judge, Family Court, Agartala, West Tripura which is still pending for disposal. It was further asserted that at her matrimonial home, she was restrained from mixing with other persons except her husband, mother- in-law and elder brother-in-law. Even the OP-husband did not allow her to visit her parental house. It was further submitted that at the time of driven out the OP-husband kept the minor daughter of the petitioner with them.

05. It was further submitted that, in the year 2014 the husband respondent and his family members along with the petitioner and her minor daughter were shifted to Chandrapur, Agartala as a tenant at Royal Tripura Residency from the period w.e.f. 2014 to 2019 due to construction of a new flat in the matrimonial house of the petitioner at Palace Compound, Agartala and during the tenancy period at Royal Tripura Residency at Chandrapur, the OP-husband on multiple occasions tortured the petitioner physically and mentally under the influence of liquor and demanded Rs.2,00,000/-.

06. It was further submitted that, due to over consumption of alcohol, the respondent-husband fall ill and in the mid night he was admitted in ILS hospital, Agartala on 17.06.2021 and he was discharged from the hospital on 23.06.2021. It was further stated that in the first week of June, 2021 the petitioner became pregnant and during that time the respondent husband and his parents made immense pressure upon her to abort the foetus and on this issue the petitioner was subjected to torture physically and even after the abortion she was driven out from her matrimonial home and since then the OP-husband does not maintain the petitioner. The petitioner approached to the OP-husband to allow her returning back to her matrimonial home, but they did not agree and in the meantime, she filed the case.

07. Learned Counsel, drawn the attention of the Court that before the Learned Family Judge, Agartala, West Tripura the OP-husband contested the proceeding and the Learned Family Judge took evidence of both the sides and finally dismissed the application for maintenance filed by the petitioner which was totally unconstitutional, illegal and as such the interference of the Court is required. It was also submitted by Learned Counsel that for determination of the proceeding Learned Judge, Family Court, Agartala, West Tripura determined 5 (five) points and elaborately discussed everything. Even the petitioner was not allowed to cross-examine the witnesses of the OP-husband. Thus, the principle of natural justice was violated. So, Learned Counsel submitted that since before the Learned Judge, Family Court the OP-husband did not dispute his marriage with the petitioner and also did not dispute his paternity of the minor daughter and since there is evidence on record that there is matrimonial discord amongst the rival parties and as such there was no reason by the Learned Judge, Family Court to dismiss the application for maintenance filed by the petitioner. So, Learned Counsel urged for setting aside the judgment and to allow the application for maintenance filed by the petitioner. As already stated, the OP-husband before this Court although appeared but remained absent at the time of hearing of argument of this case inspite of allowing opportunity.

08. Heard Learned Counsel for the petitioner and perused the judgment of the Learned Trial Court and also record of the Learned Trial Court.

09. It is on record that the OP-husband before the Learned Trial Court appeared and filed written objection denying the assertions leveled against him by the petitioner. He admitted his marriage with the petitioner as well as the paternity of the minor daughter. It was further submitted that prior to the marriage the OP-husband was engaged in a private job for which he used to go out of his house early in the morning and to return back in the evening. The house of the OP is situated at Haradhan Sangha wherein the mother of the OP gave a portion of the ground floor of the building on rent to one Kaushik Chakraborty who used to run the business of Water filter and kitchen Chimney in the said shop premises. He further took the plea that after few days of the marriage, the petitioner started misbehaving with him and his parents. She was also reluctant to do household work. The petitioner always demanded money from OP for that he had to face cruelty by the petitioner. He further stated that he fulfilled the demand of the petitioner. In the meantime, their daughter was born on 19.10.2013 at AGMC & GBP hospital. He narrated that the petitioner was also reluctant to take care of the minor daughter. Thereafter, the OP managed to get a job for the petitioner as a receptionist in the shop of said Kaushik Chakraborty but subsequently her attitude was changed. The petitioner had the habit of going out of the house with Kaushik Chakraborty and return back home at late night. The parents of the petitioner were informed about the matter but all efforts were went on vain. In the year 2014 the OP along with his mother, elder brother, his wife i.e., the petitioner shifted to Royal Tripura Residency, Chandrapur as their residential building at Haradhan Sangha was going to be constructed by the contractors into dwelling flats. During their stay, the petitioner frequently started leaving the house and roamed with said Kaushik and other male persons. When the OP raised objection, the petitioner abused him and his mother. It was further alleged that said Kaushik Chakraborty often visited the house of the OP in his absence and there they used to involve themselves in alcohol party.

10. However, before the Learned Judge, Family Court, Agartala, West Tripura the petitioner examined 3 PWs but no documentary evidence was adduced while the OP also examined two witnesses but did not exhibit any document in support of his defence. Learned Judge, Family Court to decide the proceeding framed the following points:-

Points For Determination:-

[6] Considering the pleadings, evidence of both the parties and submission of their Counsels following points are taken up for determination:-

i) Whether petitioner is the legally married wife of OP Sri Kausik Podder @ Tinku Podder?

ii) Whether OP has neglected to give maintenance to the petitioner at any time after marriage?

iii) Whether petitioner has just ground to claim maintenance allowance from OP?

iv) Whether the petitioner is unable to maintain herself and OP has sufficient means of income?

v) Whether the petitioner is entitled to get monthly maintenance allowance of Rs.20,000/- per month from OP?

11. Thus, decided the aforesaid Point No.(i) in favour of the petitioner but decided the Point Nos.(ii) & (iii) against the petitioner. Further, decided Point No.(iv) in favour of the petitioner but decided Point No.(v) against the petitioner.

12. I have also perused the evidence on record of the parties.

13. Admittedly, from the record of the Learned Trial Court it appears that, the OP before the Ld. Trial Judge took the plea of adulterous relationship of the petitioner with Sri Kaushik Chakraborty but failed to prove the said allegation against the petitioner and the Learned Addl. Judge, Family Court also at the time of delivery of judgment came to the observation that the OP-husband failed to prove the said allegation against the petitioner. There is also no evidence on record that the petitioner has/had sufficient means to maintain herself. Learned Trial Court at the time of determination of the aforesaid points came to the observation that the petitioner voluntarily left her matrimonial home and there was no negligence on the part of the respondent-husband to provide maintenance to the petitioner thus, came to the observation that the petitioner was not entitled to any maintenance. As already stated to substantiate the case the petitioner herself, her mother and one independent witness was examined.

14. PW3 was independent witness who used to reside in the same apartment wherein the petitioner and her husband used to stay with his family members since from the year 2014 as a tenant in Flat

No.402. She category stated that in the year 2017 one day the petitioner-wife was severely tortured by the OP-husband and her mother-in-law without any cause and hearing the cry she rushed in the Flat of the OP-husband when they found that the OP-husband and his mother were found in intoxicated condition assaulted physically upon the petitioner without any reasons and also they demanded money. She was put under cross-examination wherein she stated that she did not report anything to P.S. nor she did advice the petitioner to visit family counseling center and did not mention the exact date and time and denied the other assertions of the OP. The OP husband in support of his defence examined himself and also adduced his brother. But unfortunately they were not cross examined by the petitioner as because on the date of cross examination the petitioner remained absent nor his engaged lawyer was present to cross-examine the witness.

15. It is the settled position of law that Section 125 of Cr.P.C. is a beneficial provision to save guard the interest of destitute wife, parents etc. Now, for the sake of convenience I would like to refer the relevant portion of Section 125 of Cr.P.C. which provides as under:-

125. Order for maintenance of wives, children and parents.- (1) if any person having sufficient means neglects or refuses to maintain-

(a) his wife, unable to maintain herself, or

(b) his legitimate or illegitimate minor child, whether married or not, unable to maintain itself, or

(c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself, or

(d) his father or mother, unable to maintain himself or herself, a Magistrate of the first class may, upon proof of such neglect or refusal, order such person to make a monthly allowance rate [The words "not exceeding five hundred rupees in the whole" omitted by Act 50 of 2001, S. 2(i)(a)], as such Magistrate thinks fit, and to pay the same to such person as the Magistrate may from time to time direct:

....."

From the aforesaid provision it appears that, if any person having means neglects or refuses to maintain his wife unable to maintain herself.

16. Hear in the case at hand, there is no evidence on record that the OP is not able bodied, has not got any means to provide maintenance to the petitioner. Ld. Addl. Judge, Family Court at the time of the determination of the proceeding, inspite of considering the beneficial aspects tried to find out the other issues which are not relevant for deciding of a proceeding under Section 125 of Cr.P.C. It is also the admitted position that a divorce proceeding was filed by the OP-husband against the petitioner. But there is no evidence on record from the side of the respondent-husband that the said

divorce case was allowed in his favour and the OP-husband before the Learned Addl. Judge, Family Court also failed to prove the ground of alleged adultery by the petitioner with some other person. The charge of adultery is a very serious charge which attracts the chastity of a woman.

17. In the instant case, the respondent husband did not dispute his marriage with the petitioner wife nor he disputed his paternity of the child and it is also on record that since from the year 2011 to 2021 both the parties resumed conjugal life for a considerable period as husband and wife. Initially they stayed at Palace Compound. Thereafter, on the ground of construction of flat they shifted at Chandrapur from Palace Compound and started residing therein wherein PW3 used to reside.

18. It is quite natural that, the evidence of the petitioner would be supported by her mother but PW3 is independent witness who used to reside in the said apartment wherein the OP used to reside along with his family members including the petitioner and the minor daughter. So, it was quite natural on her part to observe the marital relations of the petitioner with the respondent-husband. The OP although cross examined the witness but could not raise any circumstance to disbelieve her evidence nor made any circumstance to discredit her evidence. Although she could not say the exact date of causing of torture by the respondent husband upon the petitioner and it is quite natural that in a family discord it is not possible on the part of a third person to say the exact date and time of causing of physical torture because such tortures occurs all on a sudden without any predetermination. But Learned Addl. Judge, Family Court at the time of decision of the proceeding did not consider her evidence rather discredited her evidence and relied upon the evidence of OP husband and his brother who is also an interested witness. Even the Learned Trial Judge did not consider allowing the petitioner to cross examine the respondent-husband and his brother although no such effort was taken by the petitioner- wife to take step for cross examination of the witness. Thus, it appears to this Court that for the sake of natural justice the petitioner be allowed to cross examine the respondent-husband and his witness to determine the proceeding in accordance with law. Since, the legislative intent of Section 125 of Cr.P.C. is to protect the destitute woman to prevent suffering from pregnancy, so it is always expected that the Court should be very much cautious to decide the application for maintenance under Section 125 of Cr.P.C. However, there is scope to refuse maintenance in pursuance of Sub-Section 4 of Section 125 of Cr.P.C. if the wife is living in adultery or if without any sufficient reason she refuses to live with her husband or if the parties resides separately by mutual consent. Here in the case at hand, there is no evidence on record that the petitioner wife was living at adultery. There is also no evidence on record that the petitioner voluntarily left the company of the respondent- husband or there is no evidence on record that both of them are residing separately by way of mutual consent.

19. Thus, it appears to this Court that for the sake of justice the matter be remanded back to the Learned Addl. Judge, Family Court, West Tripura, Agartala to allow both the parties to adduce their evidence afresh and thereafter to deliver a fresh judgment in accordance with law.

20. In the result, the application filed by the petitioner under Section 19(4) of the Family Court Act, 1984 read with Section 397 & 401 of Cr.P.C. is hereby allowed.

The judgment and order dated 23.05.2025 passed by Learned Addl. Judge, Family Court, Agartala, West Tripura in connection with Case No.Crl. Misc No.388/2022 is hereby set aside.

The matter is remanded back to the Learned Addl. Judge, Family Court, Agartala, West Tripura with a direction to allow both the parties to adduce their evidences afresh and thereafter to deliver a fresh judgment in accordance with law within a period of 8 (eight) months from the date of receipt of the copy of this judgment.

It is further ordered that, after receipt of the record of the proceedings along with copy of this judgment, Learned Addl. Judge, Family Court shall notify Learned Counsels of both the parties for adjudication of the proceeding.

With these observations, this criminal revision petition is thus disposed of.

Pending application/s, if any, also stands disposed of.

JUDGE

Amrita

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